

Andhra Pradesh Assigned Lands (Prohibition of Transfers) (Amendment) Act, 1989

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State of Andhra Pradesh - Act

Andhra Pradesh Assigned Lands (Prohibition of Transfers) (Amendment) Act, 1989

ANDHRA PRADESH

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Andhra Pradesh Assigned Lands (Prohibition of Transfers) (Amendment) Act, 1989

Act 32 of 1989

Published on 5 December 1989

Not commenced

[This is the version of this document from 5 December 1989.]

[Note: The original publication document is not available and this content could not be verified.]

An Act to amend the Andhra Pradesh Assigned lands (Prohibition of Transfers) Act, 1977

Be it enacted by the Legislative Assembly of the State of Andhra Pradesh in the Fortieth Year of the Republic of India as follows:-

* Received the assent of the Governor on the 4th December, 1989. For Statement of Objects and Reasons, please see the Andhra Pradesh Gazette. Extraordinary, Part IV-A, dated the 13th September, 1989 at Page 4.

1.

Short title.-

This Act may be called the Andhra Pradesh Assigned Lands (Prohibition of Transfers) Amendment Act, 1989.

2.

Amendment of Section 4.-

In the Andhra Pradesh Assigned Lands (Prohibition of Transfers) Act, 1977 (Act 9 of 1977) (hereinafter referred to as the principal Act), in section 4,-

(i)

in sub-section (1) for the word "Tahsildar", the words "Mandal Revenue Officer" shall be substituted;

(ii)

in sub-section (2), for the expression "Any order passed under sub-section (1)", the expression "Any order passed in revision under section 4-B and subject to such order, the decision in appeal under section 4A and subject to the said orders in revision and appeal, any order passed under sub-section (1)" shall be substituted.

3.

Insertion of new sections 4A and 4B.-

After section 4 of the principal Act, the following sections shall be inserted, namely:-

4A.

Appeal.-

(1)

Any person aggrieved by an order passed by the Mandal Revenue Officer under sub-section (1) of section 4, may, within ninety days from the date of receipt by him of such order appeal to the Revenue Divisional Officer.

(2)

Any person aggrieved by an order passed by the Revenue Divisional officer under sub-section (1) of section 4 may, within ninety days from the date of receipt by him of such order appeal to the District-Collector.

4B.

Revision.-

(1)

The District Collector may in respect of any proceeding not being a proceeding covered by sub-section (2) of section 4A on an application made to him and the Government may in respect of any proceedings either suo motu or on an application made to him, call for and examine the record of any officer subordinate to him or them to satisfy himself or themselves as to the regularity of such proceeding or the correctness, legality or propriety of any decision or order taken or passed therein, and if in any case, it appears to the District Collector or as the case may be to the, Government that any such decision or order should be modified, annulled, reversed or remitted for re-consideration, they may pass orders accordingly:

Provided that every application for the exercise of the powers under this section shall be preferred within ninety days from the date on which the proceeding decision or order to which the application relates was communicated to the applicant.

(2)

No order adversely affecting any person shall be passed under sub-section (1), unless such person has been given an opportunity of making his representation.

(3)

The District Collector or the Government, as the case may be, may also suspend the execution of the decision or order pending exercise of their power under sub-section (1).".

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